

in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Scott D. Dyle filed January 13, 2026 ("Supporting Declaration"), ¶¶3-5 and **Exhibit A** (Settlement Agreement) thereto.

As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. Settlement Agreement, ¶¶5 and 12-13, Supporting Declaration, **Exhibit A**.

Defendants defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶7. Defendant failed to cure after notice. *Id.* at ¶¶8-9 and **Exhibit B** thereto.

After credit for amounts paid, there remains \$68,707.02 due and owing, plus costs of \$655.00. See Supporting Declaration, ¶10.

Analysis

Defendants were duly served with the motion. The motion is unopposed.

The Settlement Agreement includes a provision that it is enforceable pursuant to Code of Civil Procedure section 664.6 and jurisdiction was reserved by the Court for that purpose. Settlement Agreement, ¶13 and Order thereon, Supporting Declaration, **Exhibit A**.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendants were duly served with the motion.
2. The Court finds that Defendants are in default of the Settlement Agreement.
3. The Motion to Enforce Settlement is GRANTED. Plaintiff shall have judgment against Defendants in the principal amount of \$68,707.02 plus costs of \$655.00, for a total judgment of \$69,362.02.
4. Plaintiff's submitted form of order and/or money judgment against Defendants will be entered by the Court. Any prior dismissal entered herein as to the Defendants is hereby set aside in connection with entry of such judgment.
- 5.

7. 9:00 AM CASE NUMBER: C24-03520

CASE NAME: MARNA PAINTSIL ANNING VS. WILDWOOD AT VILLAGE PARK OWNERS' ASSOCIATION

***HEARING ON MOTION IN RE: REASONABLE ATTORNEYS' FEES AND COSTS**

FILED BY: WILDWOOD AT VILLAGE PARK OWNERS' ASSOCIATION

TENTATIVE RULING:

Defendant Wildwood at Village Park Owners' Association ("Defendant") filed a Motion for Reasonable Attorneys' Fees and Costs on November 14, 2025 (the "Motion for Fees and Costs"). The Motion for Fees and Costs was set for hearing on March 30, 2025. The motion is opposed.

Background

Following the sustaining of Defendant's demurrer to Plaintiff Marna Paintsil Anning's ("Plaintiff") Complaint without leave to amend, the Court entered judgment in favor of Defendant and found Defendant to be the prevailing party. See Judgment for Dismissal

after Demurrer Sustained Without Leave to Amend entered September 19, 2025 (the “Judgment”).

The Judgment provided, among other things, that “Defendant may recover its reasonable attorneys' fees and costs, in an amount to be determined upon noticed motion and cost bill.” *Id.*

The Motion for Fees and Costs is supported by the Declaration of Melina Rezaei filed November 14, 2025 (the “Supporting Declaration”).

The Supporting Declaration includes a summary of the legal services rendered and expenses incurred in the litigation of the matter. See Supporting Declaration, ¶¶7-9 and **Exhibit A** thereto. The fees sought total **\$43,703.00**. See *id.* at ¶9 and **Exhibit A** thereto. The costs sought total **\$1,070.58**. See *id.* at ¶10 and **Exhibit A** thereto.

Analysis

Plaintiff filed an Opposition to the Motion for Fees and Costs. Essentially, the Opposition argues that the issue of an award of attorneys’ fees and costs is embraced within the scope of a pending appeal and the trial court cannot rule on this motion pending the resolution of the appeal. See Opposition, p. 4 *et seq.*

As addressed in Defendant’s reply, an appeal of a judgment does not prevent the trial court from ruling on a motion for an award of attorneys’ fees. *Robertson v. Rodriguez* (1995) 36 Cal.App.4th 347, 360 (trial court properly concluded it had jurisdiction to proceed because the trial court retains jurisdiction to entertain a motion for attorney fees despite an appeal).

The Opposition does not otherwise take issue with any of the specific billings or costs claimed. Nonetheless, the Court has reviewed the claimed attorneys’ fees and costs.

Having reviewed all of the claimed attorneys’ fees and the description of the work to which the claimed fees related (see Supporting Declaration, **Exhibit A**), the Court finds all of the claimed fees reasonable except as to the following: (a) certain excess or vague time reflected in billings for internal office management and communication (see e.g. 02/09/2025 time entry for time including “[c]onfer with management regarding case status”) and (b) excess time reflecting billings for file review; and (c) excess time reflecting billings for reporting to insurer (see e.g. 05/27/2025 time entry). The trial court has broad authority to determine the amount of a reasonable fee. *Holguin v. Dish Network LLC* (2014) 229 Cal.App.4th 1310, 1329.

The Court finds, in the exercise of its discretion, that a total reduction of attorneys’ fees down to **\$42,000.00** is just and reasonable. The Court finds that such amount for legal services rendered was reasonable given the nature and scope of the issues in the case and the litigation that occurred up to the entry of the Judgment. See Supporting Declaration, **Exhibit A**.

Disposition

The Court finds and orders as follows:

1. The Motion for Fees and Costs is GRANTED.
2. The Court will issue the order after hearing.

8. 9:00 AM CASE NUMBER: C25-00144

CASE NAME: YONGCHAN PARK VS. MICHAEL YANG

*HEARING ON MOTION IN RE: TO AMEND PLEADINGS TO ADD DEFENDANT EUNSOOK YANG - ADV.
TO 3/30/26 PER STIP & ORDER SUBMITTED 3/2/26

FILED BY: YANG, MICHAEL

TENTATIVE RULING:

Before the Court is Defendant Michael Yang and Minhe, Inc. (collectively, “Defendants”)’s “Motion to Amend Pleadings to add Defendant Eunsook Yang.” The Motion is opposed by Plaintiff Yongchan Park and Plaintiff Jihoon You (collectively, “Plaintiffs”).

The procedural vehicle by which Defendants bring their motion is unclear. The Defendants’ Notice does not identify a California Rule of Court or Civil Procedure. The Memorandum of Points and Authorities references Code of Civil Procedure section 473(a), which governs the amendment of pleadings.

For the following reasons, the Motion is **DENIED**.

Analysis

This case is an appeal of the Labor Commissioner’s ruling in WC-CM-761270, WC-CM-76127, and WC-CM-762296 pursuant to Labor Code section 98.2(a) by Defendants. (Labor Code § 98.2 [“[P]arties may seek review by filing an appeal to the superior court, where the appeal shall be heard de novo”].)

When an employer fails to pay wages owed to an employee, the employee may either: (1) file an original civil action directly in court, or (2) seek administrative relief with the Labor Commissioner under the Berman statutes. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 121 (*OTO*); see also *ZB, N.A. v. Superior Court* (2019) 8 Cal.5th 175, 186.) If the employee elects the latter, the Labor Commissioner may accept the matter and conduct a Berman hearing, prosecute a civil action for collection of wages, or take no further action on the complaint. (Labor Code § 98, subd. (a); *Murphy v. Kenneth Cole Productions, Inc.* (2007) 40 Cal.4th 1094, 1115 (*Murphy*).) Before conducting the hearing or pursuing a civil action, the commissioner’s staff may attempt to settle the claims informally or through a conference between the parties. (*Sonic-Calabasas A, Inc. v. Moreno* (2013) 57 Cal.4th 1109, 1128 (*Sonic*).)

If the Labor Commissioner decides to accept the matter and conduct a hearing, the hearing must be conducted within 90 days and a decision rendered within 15 days thereafter. (*Sonic, supra*, 57 Cal.4th at p. 1128.) The Berman hearing procedure is designed to provide a speedy, informal, and affordable method of resolving wage claims. (*Ibid.*) The hearing officer is authorized to assist the parties in cross-examining witnesses and to explain issues and terms not understood by the parties. (*Ibid.*) The hearings are not governed by the technical rules of evidence, and any relevant evidence is admitted if it is the sort of evidence on which responsible persons are accustomed to rely in the conduct of serious affairs. (*Ibid.*) After a judgment is entered, the Labor Commissioner is charged with the responsibility of enforcing the judgment and making reasonable efforts to have it satisfied. (*Id.* at pp. 1128–1129.)